The role of the IC, its reporting process, and interim relief options:

The principal role of your company's IC is to review evidence and investigate complaints in a fair and objective manner to arrive at a conclusion that determines further disciplinary actions, as appropriate.
An Important item of note:

- All complaints are handled and investigated only by the IC, not your manager or HR department.

The IC, established under the POSH Act, 2013, is tasked with several key responsibilities to ensure a safe and respectful workplace.
It handles and addresses sexual harassment complaints, conducting thorough and fair investigations while maintaining the confidentiality of all parties involved.
It makes recommendations for actions to the employer based on its findings, creates awareness educating employees about sexual harassment and the POSH Act, and submits annual reports on cases to the employer and district officer.
Additionally, it advises on preventive measures to foster a secure work environment.

Complainants may report sexual harassment within three months of the last incident. Upon filing of a complaint, the IC must follow procedures as stipulated under the POSH Act. The committee acknowledges and assesses the complaint's validity and does a detailed investigation with interviews and a review of evidence during the completion of enquiry.
The whole procedure is broadly classified into several stages: submission of complaint, conciliation, which is optional, enquiry into the complaint, recommendations for relief to the complainant during the pending enquiry, and filing of the official report with recommendations to the employer within 10 days of completing the enquiry.
The employer must take actions based on the recommendation by IC within 60 days.
An aggrieved person may appeal recommendations or their non-implementation to the appropriate court or tribunal, following applicable service rules or prescribed procedures if no such rules exist.

Mandated Timelines (For OST)

Action	**Timeframe**
Submission of complaint	Within 3 months of the last incident

Conciliation (Optional)	This is the complainant's prerogative, which means that the complainant may not want to settle the case but would prefer an inquiry.
Completion of enquiry	Within 90 days
Submission of report	Within 10 days of enquiry completion
Implementation of recommendations by employer/company	Within 60 days of report submission
Appeal	Within 90 days of the recommendations

Let's discuss "conciliation" in detail.
After a complaint has been filed and before proceedings of enquiry take place, the complainant, has the option of requesting to settle the matter with the respondent, or alleged perpetrator, through conciliation. The IC can give the option of conciliation or enquiry to the complainant.

If conciliation is granted, the IC must proceed with the conciliation attempt before any enquiry begins.

If an amicable settlement of agreed conciliation terms is made, then no further enquiry is conducted.
If conciliation is unwelcome by the complainant, the IC will conduct an official enquiry within the mandated timelines.

The IC may provide the following interim reliefs to a complainant:

- Complainant or respondent can be transferred to another workplace.
- Complainants can receive paid leave up to 3 months
- Should the respondent hold a supervisory role over the complainant, the complainant will be assigned to another manager, and the respondent will not be allowed to report on their work performance.

Scope of disciplinary actions against alleged perpetrators or false complaints:

After an enquiry, once an IC arrives at the conclusion that sexual harassment at the workplace has been proven, the POSH Act enables employers to take action against the perpetrator.
While your company policy will outline specific disciplinary actions under its own prescribed service rules or policies, the POSH Act allows for any of the following disciplinary measures:

- a written apology to the complainant,

- oral or written warning, reprimand or censure,
- withholding of promotion, pay rises or increments,
- suspension or termination of employment or contractual agreements,
- undergoing counseling, or
- performing community service.

If the IC determines the respondent is guilty following their investigation, the POSH Act allows the Committee to recommend monetary compensation for the aggrieved women with deductions from the respondent's salary based upon:

- Mental trauma, pain, suffering, and emotional distress caused
- Medical expenses incurred
- Loss of career opportunities
- The income and financial status of the respondent.

No monetary compensation otherwise is allowed under the Posh Act.

If the IC determines the complainant's report to be purposefully false or malicious in nature, or complaint was made knowing it to be untrue, forged, or both the parties misleading information provided during enquiry, this may also result in disciplinary action for the complainant.
However, it is an important distinction that the mere inability to substantiate or prove an allegation does not define it as false or malicious.

Confidentiality and retaliation to complaints:

Complainants of sexual harassment often choose not to report their experiences due to the fear of retaliation by either their alleged perpetrator or organization. Retaliation is when a complainant suffers negative impacts after having made a report of harassment, assisted another with a complaint, or been a witness. Retaliation can range from being subjected to office gossip, isolation or threats, to receiving critical work assessments or being assigned unfavorable projects.

Retaliatory behavior is never justified and is as serious an offense as harassment itself. It may be reported in the same manner as the original grievance, and lead to further penalties for the alleged perpetrator even if the original charge of sexual harassment is not proven.

To avoid retaliation against complainants, employers should enforce strict non-retaliation policies and foster a respectful workplace environment.

To stem the opportunity for retaliation, the POSH Act specifically prohibits the disclosure of the identity and address of the complainant, respondent, and witnesses.
Involved parties often sign non-disclosure agreements to ensure confidentiality.
The Act protects complainants and witnesses from adverse actions like termination or discrimination.

It also enacts a complete embargo on the publication, communication, or making known of all information pertaining to conciliatory or enquiry proceedings, the recommendation of the IC, or action taken by the employer. Any breaches of confidentiality can be subject to penalties.

Module 4 Key Points:

In this module, we covered the various key information that all employees should be aware of when reporting and preventing sexual harassment in the workplace.

- Reporting is important, and it is everyone's responsibility to create a respectful workplace free from sexual harassment.
- Both complainants and witnesses have guidelines for dealing with and reporting incidents of sexual harassment.
- Complaints will be evaluated by the IC in a fair and objective manner.
- Significant penalties can be taken against alleged perpetrators and retaliation to complaints is a serious offence.
- Interim reliefs are available to all complainants during the period of inquiry by the IC.